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Emmanuel Owushi Dr

University of Port Harcourt, emmaowushi@gmail.com

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LAW LIBRARIES AND SUSTAINABILITY OF JUDICIAL PRECEDENT IN NIGERIAN LEGAL SYSTEM

By
Emmanuel Owushi
Law library
Faculty of Law
University of Port Harcourt
Rivers State, Nigeria,
emmaowushi@gmail.com

Abstract

The study adopted descriptive study to examine law libraries and sustainability of judicial precedent in Nigerian legal system. The population involved legal educators, law librarians and practitioners in four States in different geopolitical zones of Nigeria, namely Rivers State, Lagos State, Benue State, and Anambra State. Due to the large population, the study employed multi-stage of balloting and random sampling techniques to sample 100 respondents each from the selected states. Out of the 400 samples, 389 respondents responded correctly to the questionnaire, indicating a 97.3 percent response rate. A self-designed questionnaire was utilized and means score was used to answer objective 1 and 3, while objective 2 was answered with independent t-test. The findings espoused that law libraries have enormous roles and a statistically significant positive impact in the sustainability of judicial precedent in Nigerian legal system, and that law libraries face challenges related to resources, technology, and awareness. The study concluded that considering the important role of law libraries in the sustainability of judicial precedents in Nigeria legal system that addressing the challenges facing law libraries in dispensing this role is essential for the continued effectiveness of judicial precedent and the enhancement of the legal profession in Nigeria.

Keywords: Judicial Precedent, Law Library, Law Reports, Legal System.

Introduction

Judicial precedent is an age long legal principle that is applied in Nigerian legal system in the view of hierarchy of courts that abound. The doctrine of judicial precedent or *stare decisis* is one of the features of the common law system. It is a principle of law which Nigerian legal system adopted, which maintains that previous judicial decisions and law embedded therein are to be followed by lower courts, Ikegbu, Duru and Dafe (2014). Imuekemhe (undated) sees judicial precedent as previous judgments or decisions officially documented by the court, usually published in law reports, used as legal authorities for deciding subsequent cases. Its application is based on the Latin maxim, “*stare decisis et non quieta movare*”, meaning, “to stand by what has been decided and do not unsettle the unestablished”. Eso, J.A. (as he then was) in the case of *Pascal Ludwig Inc. V A.T. Kiren* stated that adherence to precedents is one of the strongest principles of judicial policy.

This principle of law enjoys judges to create new rules where necessary to change circumstances that exist or in a situation where there is no law governing such a situation before a court. At this point judges are bound to create, widen and extend a rule of law. For this principle of law to operate effectively, there must be in place a hierarchical court system and a system of law reporting so that the past cases can be studied and followed. When a court is under obligation to follow a previous decision, the precedent is said to be binding, this happens when it is in the same jurisdiction while when it is coming from another jurisdiction it will be persuasive.

Ikegbu, Duru and Dafe (2014), again remarked that the judicial precedent is a convenient practice since it requires that a question once decided should not be subject to re-argument in every case in which it subsequently arises. The authors added that there is gain of time and resources in not treating as open questions already decided. **Cardozo (1921)** stated that labour of judges would be increased almost to a breaking point if a settled point could be reopened in every case. The import of this statement is that it saves time and energy in judicial proceedings.

The sustainability of judicial precedent and *stare decisis* depends on the availability of law reports which is one of the core information bearing materials in the law libraries. It is because their immense legal value that law libraries are heavily used. The decision of the superior courts, the *ratio decidendi*, reported in the law reports provides easily accessible precedent in subsequent cases of similar or identical facts. This makes it possible to predict how cases will go in courts. The success of this principle of law solely depends on well-stocked law library.

Law library affords judges, magistrates, lawyers, law lecturers and students to get acquainted with latest decisions of courts on any legal issue(s). This is done easily through law reports, law journals which law libraries subscribed to weekly, monthly or quarterly **Akinwumi (2012)**. The main objective of law library is to acquire, process, store and to disseminate legal information bearing materials to its respective users.

Hararnde and Umar (2021) depicted that to law professionals, law materials are crucial as law courts rely heavily on legal precedents in judging current cases. The complexity of the legal profession naturally demands maximum information resource utilization for appropriate and effective legal activities as presented by **Umar and Yahaya (2020)**. It is on this note that **Adeleke (2015)** depicted that if the library is to contribute to the advancement of knowledge it must not only provide the resources but also ensure utilization of the resources by its clientele.

From the above exposition it is clear that law libraries have significant role to play in sustainability of judicial precedent in the Nigerian legal system.

Objectives of the Study

The objective of this study is to investigate the place of law libraries in sustainability of judicial precedent in the Nigerian legal system.

The specific objectives were to:

- i) ascertain the roles of law libraries in sustainability of judicial precedent in the Nigerian legal system.
- ii) investigate the influence of law libraries in the operation of judicial precedent in the Nigerian legal system.
- iii) find out the problems of law libraries in the application of judicial precedents.

Review of Related Literature

Law libraries are crucial to legal practice and administration of justice, as the repositories of law books and other legal information sources. **Akinwumi (2012)** recorded they serve as the place of references and research not only for students but also for judges, lawyers, senior public officials and others having a need for legal information. **Akpoghome and Idiegbeyan-Ose (2011)** documented that law library provides an avenue through which legal sources (legal texts, indexes of law reports, case laws and old files of similar cases in the past precedents are accessed to validate the case or cases presented, and for the adoption of the new legal position or to reverse the previous court decisions.

Tuhumwire and Okello-Obura (2011) in their wisdom submitted that of all professions, the law have the largest collection of books because a well-stocked reference law library is important to a lawyer as well as to the judge in the administration of justice. The authors added that a lawyer will always make a poor submission if he does not refer to legal authorities, and a judge will not be as rich without referring to the previously decided cases as authorities, cited in law reports

Harande and Umar (2021) depicted that the law library is expected to be proactive, vibrant and be abreast of the latest developments in information dissemination to maintain relevance and keep up with the multifarious needs and expectations of law library users. The authors maintained that in order to provide efficient library services, law libraries are expected to acquire a wide range of variety of legal information resources, provide expertise and technological support.

It will not be out of place to state **equivocally** that the success of this principle of law, judicial precedent, relies on the power of legal information content in law libraries ranging from primary sources to secondary sources. These legal information sources are the engines that propel, vibrate and energises the legal system for the effective application this principle of law.

Under the Nigerian legal system, once a court decides a matter, the doctrine *stare decisis* stipulates that any court which is below that court in the hierarchy of courts must follow that

previous decision if the facts in the new case before it are similar to the facts of the earlier case, **Emenogha (2019)**. Keeping to this principle will make judges to stick to the laid down standards, it prevents them from being biased in the course of justice. In the Supreme Court case of *Eperokun v University of Lagos*, Oputa, JSC (as he then was) remarked that;

‘standing by previous decision which has not been proved to be perverse, or to have been decided *per incuriam* or proved to be faulty legally or procedurally has a lot of advantages, His Lordship added that it fosters stability and enhance the development of consistent and coherent body of law, that it preserve continuity and manifest respect for the past.’

In support of this position, **Kalgo JSC** (as he then was) in the case of *Global Transport Oceanics S.A. v Free Enterprises Nigeria Ltd*, said that it assures equality of treatment for litigants similarly situated, that it likewise spares the judges the task of re-examining rules of law, or principles, with each succeeding case, and finally it affords the law a desirable measure of predictability.

Judicial precedent, together with its doctrine of *stare decisis* and others, just like any other principle of law, has its effects on the Nigerian Jurisprudence. **Emenogha (2019)**, states that the effects are either positive or negative depending on the view and opinions of the persons and authorities who argue and equally express their opinion on them. These effects according to Aroh can be properly referred to as the merits and demerits of judicial precedents.

It could be argued that rigidity of this principle of law could occasion injustice. For example, when a decision of the Supreme Court is decided *per incuriam*, the lower courts have no option than to follow it, undermining the fact that it could lead to injustice. This view has the support of **Ikegbu, Duru and Dafe (2014)** depicted that the application of judicial precedent in the Nigerian legal system could occasion injustice as result of its conservatism and failure to admit novelty in deciding cases; that it also fosters rigidity, dampening the spirit of experimentation leading to a repetition of past mistakes and the cumbersome nature of finding precedent. The authors maintained that the doctrine of judicial precedent or *stare decisis* in spite of its perceived benefits as making for certainty and uniformity, saving time and prevention of legal chaos in the hierarchical operation of the court system among others ought to be jettisoned as the doctrine is alien to our legal system. They further remarked that philosophically, that application of the doctrine of judicial precedent or *stare decisis* in our legal system is not only an imposition, it is also reductionistic, absolutist, suspect and lacking in substance as no two cases are exactly the same in the question of facts and law and in all the material circumstances of the case.

As earlier stated the sustainability of the principle of judicial precedent basically, depends on the availability of law reports in the law library. Sometimes law reports could be unavailable or affordable which is usually caused by the library reduction in library budget. When this happens, it becomes serious problem to the lawyers and judges in course of their legal duties. This is why **Ikegbu, Duru and Dafe (2014)** documented that in such circumstance; there

may

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be chances of reaching wrong decisions by relying on available authorities that might even have been overruled. A library will lose its value if its services and resources are not satisfactory to her users, as no user will continue to patronise a library that fails to meet his or her information needs. Users are only attracted to the library that the materials are current, adequate and congruent to solving of the information needs.

Methodology

The study adopted descriptive study to examine law libraries and sustainability of judicial precedent in Nigerian legal system. The population involved legal educators, law librarians and practitioners in four States in different geopolitical zones of Nigeria, namely Rivers State, Lagos State, Benue State, and Anambra State. Due to the large population, the study employed multi-stage sampling including balloting (through which the four states were selected) and random sampling to sample 100 respondents each from the selected states. Out of the 400 samples, 389 respondents responded correctly to the questionnaire, indicating a 97.3 percent response rate. A self-designed questionnaire was utilized and means score was used to answer objective 1 and 3, while objective 2 was answered with independent t-test.

Results and Discussion

Research question 1: Roles of law libraries in sustainability of judicial precedent in the Nigerian legal system?

Table 1. Roles of law libraries in sustainability of judicial precedents in the Nigerian Legal system.

SN	ITEM	SA	A	D	SD	x	Decision
1	Archival role	117	165	77	30	2.9	Agreed
2	Research Support	79	163	102	45	2.7	Agreed
3	Access to Precedents	80	129	121	59	2.6	Agreed
4	Updating Case Law	64	192	84	51	2.7	Agreed
5	Comparative analysis	109	156	66	48	2.8	Agreed
6	Facilitating appeals	113	157	80	39	2.9	Agreed
7	Educational resources	122	168	67	32	3.0	Agreed
8	Knowledge sharing	100	155	110	24	2.9	Agreed
9	Access to legal resources	86	98	105	100	2.4	Disagreed
10	Preservation of legal heritage	100	108	117	64	2.6	Agreed

The Table 1 shows that the respondent accepted all the items except for item 9 as roles of law libraries in sustainability of judicial precedents in the Nigerian legal system. The roles agreed with obtained a mean score above criterion mean of 2.5, and they are archival role to

preserve and store past case law, ensuring that judicial decisions are accessible for future reference. Research support to offer resources and assistance for legal professionals to conduct in-depth research on precedent cases. Access to precedents through providing access to legal databases and case reports, law libraries enable legal practitioners to study and understand past judgments. Updating case law to help legal professionals stay updated by providing current case reports and summaries. Comparative analysis to aid in comparing past and current cases to identify trends and patterns in legal reasoning, facilitating appeals to assist lawyers in finding relevant precedents to build strong arguments for appellate cases. Educational resources to support legal education by offering resources for law students to study and analyze judicial precedents. Knowledge sharing to serve as spaces for legal professionals to exchange insights and opinions on judicial precedents. And preservation of legal heritage to contribute to preserving the legal heritage of Nigeria by maintaining a repository of legal judgments. Summarizing this finding, Harande and Umar (2021) averred that the law library is expected to be proactive, vibrant and be abreast of the latest developments in information dissemination to maintain relevance and keep up with the multifarious needs and expectations of law library users.

Research question 2: What is the influence of law libraries in the operation of judicial precedent in the Nigerian legal system?

Table 2. Influence of law libraries in the operation of judicial precedent in the Nigerian legal system.

Groups	N	$\bar{x}$	s^2	t. calculated	t. critical	α	DF	Decision
Upper bound (+)	218	81.3	4.8	26.22	1.6488	0.05	387	Significant difference
Lower bound (-)	171	71.6	16					

The independent t-test was used to compare the mean score between the respondents that responded that law libraries have positive influence on judicial precedent in the Nigerian legal system and those that responded that it has negative influence. While those that responded positively were grouped in the upper bound (+), those that responded negatively (-) were grouped in the lower bound. The calculated t-test (t calculated) is 26.22 the degree of freedom is 387 obtained with $(n_1 + n_2) - 2$. The significant value of 0.05 from the table of critical value is 1.6488. The t-calculated (26.66) is greater than the critical value of 1.6488. i.e., there is a statistical significant difference between the two samples.

The upper bound totalled 218 while the lower bound totalled 171. The mean score of both groups were compared and the calculated t of 26.22 which is statistically significance at 0.05 indicating a significant difference between the two groups. With the upper bound having the highest frequency, higher mean score, and the significance difference in the mean score shows that law libraries have positive influence on judicial precedent in the Nigerian legal system. This finding follows the submission of Tuhumiwire and Okello-Obura (2011) that in all professions, the law has the largest collection of books because a well-stocked reference

law library is important to a lawyer as well as to the judge in the administration of justice. Going further, they averred that a lawyer will always make a poor submission if he does not refer to legal authorities, and a judge will not be as rich without referring to the previously decided cases as authorities. Thus, supporting the finding that law libraries have positive influence on the precedent of Nigerian judicial system.

Research question 3: What are the problems of law libraries in the application of judicial precedents?

Table 3. The problems of law libraries in the application of judicial precedents.

SN	ITEM	SA	A	D	SD	x	Decision
1	Outdated Resources	80	134	106	69	2.6	Agreed
2	Limited Access	94	174	81	40	2.8	Agreed
3	Inadequate Budget	81	137	113	58	2.7	Agreed
4	Lack of Digitization	44	100	107	118	2.3	Disagreed
5	Unorganized Cataloguing	67	72	116	134	2.2	Disagreed
6	Inadequate Staff Training	110	160	74	44	2.9	Agreed
7	Limited Public Awareness	125	142	80	42	2.9	Agreed
8	Copyright Restrictions	153	139	60	37	3.0	Agreed
9	Fragmented Information	135	114	82	58	2.8	Agreed
10	Space Constraints	253	86	28	22	3.5	Agreed

On the problems of law libraries in the application of judicial precedents, the respondents agreed with 8 items including outdated resources, as most law libraries may struggle with having outdated or incomplete case law resources, making it difficult to access recent legal decisions; limited access, some law libraries might not have access to comprehensive legal databases, limiting the availability of precedents; inadequate budget, such constraints can hinder law libraries from acquiring new case law materials and updating their collections regularly; inadequate staff training, insufficient training of library staff in legal research techniques can affect the quality of assistance provided to users, limited public awareness, as users might not be fully aware of the library's resources, leading to underutilization of available case law materials; copyright restrictions, issues surrounding copyright can restrict law libraries from sharing certain case law materials online or with external users; fragmented information, law libraries may struggle with consolidating information from various sources, leading to difficulties in comprehensive research; and space constraints, limited physical space can hinder law libraries from expanding their collections and providing comfortable research environments. Law libraries are crucial to the legal education and profession, as pointed out by Umar and Yahaya (2020), the complexity of the legal

profession naturally demands maximum information resource utilization for appropriate and effective legal activities.

Conclusion and Recommendations

The study investigated the roles of law libraries in sustaining judicial precedent in the Nigerian legal system. It explored the influence of law libraries on the operation of judicial precedent and identified the problems law libraries face in the application of judicial precedents. The findings highlighted the crucial role of law libraries in maintaining and promoting the effective application of judicial precedent, while also shedding light on challenges faced by these libraries.

In response to the first research question regarding the roles of law libraries, the study revealed several key functions. These include the archival role of preserving and storing past case law, facilitating research support for legal professionals, granting access to precedents through legal databases, updating case law materials, aiding comparative analysis, assisting in appeals, providing educational resources for legal education, enabling knowledge sharing, and contributing to the preservation of legal heritage. The influence of law libraries on the operation of judicial precedent was investigated, and the analysis indicated that law libraries have a statistically significant positive impact. Respondents acknowledged that law libraries play a crucial role in enhancing the operation of judicial precedent in the Nigerian legal system. This finding aligns with the view that well-stocked reference law libraries are pivotal for both lawyers and judges in the administration of justice. The third research question explored the problems faced by law libraries in the application of judicial precedents. Respondents identified challenges such as outdated resources, limited access to comprehensive legal databases, inadequate budgets for acquiring new materials, lack of digitization, unorganized cataloguing, insufficient staff training in legal research techniques, limited public awareness of available resources, copyright restrictions, fragmented information from various sources, and space constraints. In conclusion, the study underscores the pivotal role of law libraries in ensuring the sustainability of judicial precedent in the Nigerian legal system. Law libraries facilitate access to legal materials, support research, and provide essential resources for legal professionals, judges, and students. While law libraries contribute significantly, they also face challenges related to resources, technology, and awareness. Addressing these challenges is essential for the continued effectiveness of judicial precedent and the enhancement of the legal profession in Nigeria.

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